

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

At the hearing, the Court's tentative ruling is as follows:

A proof of service for a summons that complies with statutory requirements creates a rebuttable presumption that service was proper. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2025), §4:362, p. 66. “A declaration of service by a registered process server establishes a rebuttable presumption that the facts stated in the declaration are true.” 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group), §4:367, p. 66, citing Evidence Code §647.

One of the manners of service authorized for summons and complaint is substituted service. C.C.P. §415.20(b) authorizes substituted service by delivery if a copy of summons and complaint to the dwelling place of the person intended to be served, leaving it “in the presence of a competent member of the household or a person apparently in charge . . . at least 18 years of age”, and thereafter mailing another copy to that same address, addressed to the person intended to be served.

Plaintiff has submitted evidence of valid substitute service. (Plaintiff's exhibits one and two.) The Court notes that the address where substitute service occurred is the same address that Defendant uses in filing the instant motion.

Defendant's declaration to the motion to set aside is insufficient to rebut the presumption that the service was proper. Defendant's declaration states that there was no personal service but fails to challenge proper substitute service.

Similarly, Defendant fails to set forth any other valid grounds to set aside and vacate default.

Defendant's motion to set aside default and default judgment is therefore denied.

WELLS FARGO BANK, N.A. vs. ANDREA DAROCHA
Case No. CL25-11400

Plaintiff's Motion to Deem Matters Admitted

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